

Calendar Line 4**Case Name:** *Christopher Novak v. Charles Ross et al.***Case No.:** 24CV428693

Defendant Charles Ross moves to compel initial responses to form interrogatories, special interrogatories, and inspection demands from plaintiff Christopher Novak. In addition, Ross seeks an order deeming RFAs admitted, given the absence of timely responses. In opposition, Novak argues that the motion is now moot, as he served written responses “[p]rior to the service of this opposition” on November 20, 2024. (Opposition, p. 2:1.) It is not exactly clear when Novak served these responses—neither side identifies the date(s) in their papers, and neither side has attached copies of these responses—but it is apparent that they were provided three or four months after than the original deadline of mid-July 2024.

The court agrees with Novak that the motion to compel responses and to deem RFAs admitted is largely moot. Although Ross argues that Novak’s RFA responses (and form interrogatory responses) are not in “substantial compliance” with the rules, and that this court should therefore “deem this a request to have Defendant [sic] Request for Admissions, [sic] Admitted” (Reply, p. 4:19-23), he fails to show any inadequacy in his reply papers. Again, *neither side* has submitted the tardy responses with their papers, and so the court has no way of determining whether they are in “substantial” compliance or not. The court therefore rejects Ross’s request.

At the same time, the court finds that Novak fails to provide a reasonable explanation for why his responses were three to four months late. He simply claims that the delay “was clearly not a malicious act meant to gain a litigation advantage.” (Opposition, p. 2:15-16.) This is inadequate. The court finds that Novak did not act with substantial justification in forcing Ross to incur the expense of bringing this motion. Although the court finds Ross’s request for \$2,700 to be excessive for such a simple motion, the court will order Novak to pay Ross **\$900.00** (five hours at counsel’s hourly rate of \$180/hour) within 30 days of notice of entry of this order. As a reminder, the purpose of discovery sanctions is compensatory, not punitive.

In short, the court DENIES Ross’s motion to compel responses and to deem RFAs admitted. The court GRANTS IN PART Ross’s request for monetary sanctions.

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Calendar Line 7**Case Name:** *Ezequiel Ciappolino v. Dmitry Stadlin et al.***Case No.:** 24CV434209

This is a motion for an award of attorney's fees arising out of a successful anti-SLAPP motion brought by defendant Dmitry Stadlin. In its order dated August 20, 2024, the court noted: "The motion and reply are not accompanied by any declaration stating the fees and costs incurred in bringing the special motion to strike. Therefore, Stadlin will have to bring a separate motion for attorney[']s fees in order to recover any mandatory award." (August 20, 2024 Order, p. 11:1-3.) This is now that separate motion, seeking an award of \$15,400.00 (38.5 hours at a billing rate of \$400/hour).

Plaintiff Ezequiel Ciappolino opposes the motion, but his primary argument does not focus on the scope of the proposed award; rather, he relies primarily on the fact that his current monthly income is only "about \$2,000 per month working as a server/cook." (Ciappolino Declaration, ¶ 2.) He contends that under *Garcia v. Santana* (2009) 174 Cal.App.4th 464, 473-476 (*Garcia*), the court must consider "the losing party's financial condition" in determining the reasonableness of a fee award. (Opposition, p. 2:27-3:24.) In this case, he says that the amount requested by Stadlin is not reasonable because it imposes "an unreasonable financial burden on" Ciappolino, representing a majority of his annual income. (Opposition, p. 3:6-19 [citing *Garcia* at p. 475].)

As a general matter, the court notes (as it did in its August 20, 2024 order) that an award of attorney's fees is generally mandatory. (See Code Civ. Proc., § 425.16, subd. (c) [the "prevailing defendant" on a motion to strike "shall be entitled" to recover his or her attorney's fees and costs]; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131 ["[A]ny SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees."].) The purpose of this fee-shifting provision is both to discourage meritless lawsuits and to provide financial relief to the SLAPP lawsuit victim. *Garcia, supra*, was not a case involving an anti-SLAPP motion; it was a case involving an award of attorney's fees under the Davis-Stirling Act, which addresses disputes involving homeowner associations. As such, it is not directly on point. Indeed, the court is not aware of any statutory or case law authority that holds that a trial court must consider a non-prevailing party's financial condition in determining an award of attorney's fees on an anti-SLAPP motion. Moreover, Ciappolino proposes an extreme application of the principle here, arguing that the appropriate award should be \$0. Such an outcome would be directly contrary to the purpose of the fee-shifting provision in section 425.16, subdivision (c), providing no deterrence against meritless SLAPP suits like the one filed by Ciappolino.

At the same time, the court recognizes that the deterrent purpose of the anti-SLAPP statute should be tempered by considerations of due process, and Ciappolino has shown an exceptionally limited ability to pay in this case. Accordingly, the court will reduce the attorney's fees award to \$8,000 (20 hours at \$400/hour). This is still one-third of Ciappolino's claimed annual income, which is a hefty sum and sufficient to realize the deterrent purpose of section 425.16. (Stadlin notes in reply that Ciappolino is supposedly due to collect on a \$300,000 judgment in the related lock-out litigation between Ciappolino and Stadlin's former client (see Reply, p. 2:10-13).)